

BRENDAN NGWA NFORBI

Plaintiff, In Pro Per

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**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA**

BRENDAN NGWA NFORBI,

Plaintiff,

v.

**SANTIAGO MEZA-GONZALEZ
(CHP Badge #023295), in his individual
capacity; JOSE MELANO (CHP Badge
#023054), in his individual capacity;
and DOES 1 through 10, inclusive,**

Defendants.

Case No. _____

COMPLAINT FOR DAMAGES

(42 U.S.C. § 1983)

- (1) 4th Amend. -- Judicial Deception;
- (2) 14th Amend. -- Fabrication of Evidence;
- (3) 4th Amend. -- Unlawful Arrest;
- (4) 4th Amend. -- Unlawful Entry;
- (5) 4th Amend. -- Unlawful Search;
- (6) 1st Amend. -- Retaliation.

[DEMAND FOR JURY TRIAL]

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, brings this action against Defendants SANTIAGO MEZA-GONZALEZ and JOSE MELANO, in their individual capacities, and alleges as follows:

INTRODUCTION

1. This is a civil rights action under 42 U.S.C. section 1983 arising from an arrest on November 1, 2024, on the shoulder of Interstate 580 East in Livermore, Alameda County, California. Plaintiff Brendan Ngwa Nforbi, a commercial truck driver holding a Class A Commercial Driver's License (No. F7953179), was parked and asleep in his vehicle when

1 California Highway Patrol Officers Santiago Meza-Gonzalez and Jose Melano approached. Over
2 the course of two hours -- captured in their entirety on the officers' own dashcam recording (CHP
3 Case No. RJ68845) -- the officers opened the vehicle without consent or warrant, identified the
4 only cup in the vehicle as containing urine, continued the investigation after the basis for their
5 initial suspicion had dissipated, arrested Plaintiff within eighteen seconds of his exercise of the
6 statutory right to decline a voluntary preliminary alcohol screening test, and then generated sworn
7 statements containing material representations that are contradicted by the same recording in the
8 CHP's own custody.

9
10 2. After the arrest, Officer Meza-Gonzalez executed under penalty of perjury a DS-367
11 Officer's Statement and a CHP Arrest-Investigation Report, both of which were used to obtain a
12 blood-draw warrant from a magistrate, to initiate a one-year administrative suspension of
13 Plaintiff's commercial driving privileges, and to refer criminal charges to the Alameda County
14 District Attorney. The DS-367 and arrest report contain at least four representations that are
15 materially contradicted by the dashcam recording: a claimed "strong distinct odor of an alcoholic
16 beverage" that neither officer ever verbalizes on the recording; a characterization of Plaintiff's
17 speech as "slurred" when the recording captures extended coherent conversation; a claim that
18 Plaintiff was "very confused and disoriented" when the recording shows him correctly identifying
19 his location and reading distant signage; and a checked box for "Beverage Present: Yes" when the
20 only liquid the officers found was, in Officer Melano's own contemporaneous words on the
21 recording, "piss." Four days later, CHP itself issued a Penal Code section 851.6 Detention
22 Certificate reclassifying the event as "a detention only, not an arrest" for "insufficient grounds."
23 The Alameda County District Attorney declined to file any charges.

24
25 3. Plaintiff brings five claims against Defendants in their individual capacities: judicial
26 deception in support of a blood-draw warrant; deliberate fabrication of evidence; unlawful arrest
27 without probable cause; unlawful warrantless entry into a private vehicle; and unlawful search.
28 Plaintiff seeks compensatory and punitive damages and reasonable attorney's fees under 42

1 U.S.C. section 1988.

2
3 **JURISDICTION AND VENUE**
4

5 4. This Court has original subject-matter jurisdiction under 28 U.S.C. section 1331
6 (federal question) and 28 U.S.C. section 1343(a)(3) and (a)(4) (civil rights). The claims arise
7 under the First, Fourth, and Fourteenth Amendments to the United States Constitution, as
8 enforced through 42 U.S.C. section 1983.

9
10 5. Venue is proper in the Northern District of California under 28 U.S.C. section
11 1391(b)(2). All events giving rise to this action occurred in Livermore and Dublin, Alameda
12 County, California, within this District.

13
14 6. Under Civil Local Rule 3-2(c) and (d), this action arose in Alameda County and is
15 appropriately assigned to the San Francisco Division or the Oakland Division.

16
17 **PARTIES**
18

19 7. Plaintiff BRENDAN NGWA NFORBI is a natural person and a resident of the County
20 of San Joaquin, State of California. At all relevant times, he held a valid California Class A
21 Commercial Driver's License (No. F7953179) with endorsements for doubles/triples and tank
22 vehicles.

23
24 8. Defendant SANTIAGO MEZA-GONZALEZ (CHP Badge #023295) is a sworn peace
25 officer employed by the California Highway Patrol, assigned to the CHP Dublin Area. He was
26 acting under color of state law at all relevant times. He is sued in his individual capacity only.

27
28 9. Defendant JOSE MELANO (CHP Badge #023054) is a sworn peace officer employed

1 by the California Highway Patrol, assigned to the CHP Dublin Area. He was acting under color of
2 state law at all relevant times. He is sued in his individual capacity only.

3
4 10. The true names of Defendants DOES 1 through 10 are presently unknown. On
5 information and belief, each participated in, approved, or acquiesced in the conduct alleged
6 herein. Each is sued in his or her individual capacity. Plaintiff will seek leave to amend when
7 their identities are ascertained.

8 9 **FACTUAL ALLEGATIONS**

10 11 **A. Plaintiff Was Lawfully Parked and Asleep**

12
13 11. On the evening of October 31, 2024, and into the early hours of November 1, 2024,
14 Plaintiff was driving a rented gray Tesla Model Y eastbound on Interstate 580. Feeling fatigued,
15 he exited active travel lanes and parked on the right shoulder just west of the Isabel Avenue exit
16 in Livermore, Alameda County. He then rested in the driver's seat. He was not driving. No officer
17 observed him in volitional movement of the vehicle.

18
19 12. Plaintiff is a professional commercial truck driver. Pulling off the road to rest when
20 fatigued is consistent with federal Hours-of-Service principles and with CHP's own public safety
21 guidance to drowsy motorists.

22 23 **B. The Officers' Pre-Contact Hypothesis**

24
25 13. At approximately 00:54:36, the CHP patrol vehicle's dashcam recording activated as it
26 came to a stop behind Plaintiff's parked Tesla. The recording ran continuously through
27 approximately 01:57:10, capturing the entirety of the encounter.

1 14. At 00:55:53, before either officer had approached the vehicle, Officer Melano
2 remarked on the recording: "It's a rental. Huh." At 00:56:05, both officers approached and peered
3 through the windows with flashlights while Plaintiff remained asleep inside. At 00:56:07, Melano
4 stated: "It wasn't here earlier when we passed by."

5
6 15. At 00:56:09 -- before either officer had spoken a word to Plaintiff, before Plaintiff was
7 awake, and before any welfare observation had been made -- Officer Melano stated on the
8 recording: "I think it's booze." That statement, directed at a cup visible through the vehicle
9 window, was formed before any contact with Plaintiff and before any observation of his
10 condition.

11
12 **C. Warrantless Entry**

13
14 16. At 00:56:43, Officer Melano opened the front passenger-side door of Plaintiff's
15 vehicle. Plaintiff was still asleep. He had not consented to entry. No warrant had been obtained.
16 No exigent circumstance -- no medical emergency, no ongoing crime, no fire, no destruction of
17 evidence, no hot pursuit -- was present or articulated. No other basis for the entry was articulated
18 on the recording.

19
20 **D. The Cup Is Identified as Urine;**
21 **the Initial Suspicion Dissipates**

22
23 17. Between 00:58:49 and 00:59:07, Officer Melano seized the cup from the vehicle
24 interior, smelled it, and identified its contents on the recording:

25
26 Melano: "Is it water? No this is piss. This is pee."

27
28 Plaintiff: "I don't know what that is."

1
2 Melano: "I'm telling you it's piss. It smells like piss."
3

4 18. Officer Melano's own contemporaneous identification of the cup's contents as urine is
5 inconsistent with his earlier hypothesis that the cup contained alcohol. Whatever investigative
6 suspicion the cup had generated dissipated at the moment the officer handling it identified it as
7 something other than an alcoholic beverage and said so aloud.
8

9 **E. Continued Detention, Field Sobriety Exercises,**
10 **and PAS Advisement**
11

12 19. The officers did not terminate the encounter. They ordered Plaintiff out of the vehicle
13 onto uneven ground and administered field sobriety exercises. Officer Melano acknowledged on
14 the recording that the ground conditions were not suitable for reliable FST administration and
15 declined to perform certain balance-dependent exercises for that reason.
16

17 20. Throughout the encounter, Plaintiff spoke coherently and articulately. The dashcam
18 audio captures him spelling his surname on request, discussing the alternator design of the rental
19 Tesla, explaining CDL fatigue protocols, and correctly identifying his location as Livermore. At
20 no point in over two hours of continuous recording does either officer verbalize any observation
21 of an alcohol odor emanating from Plaintiff.
22

23 21. At 01:10:54, Officer Meza-Gonzalez advised Plaintiff that the preliminary alcohol
24 screening ("PAS") test was voluntary: "You're not required to do this." That advisement is legally
25 accurate. Under California Vehicle Code section 23612(i), a PAS is a preliminary investigative
26 tool, and a driver not on DUI probation may lawfully decline it.
27

28 22. At 01:11:03, Officer Meza-Gonzalez stated on the recording: "If you choose to not

1 consent to it, then it'll be up to my discretion whether I put you under arrest for DUI or not." That
2 statement, captured on the officers' own recording, expressly conditioned the arrest decision on
3 whether Plaintiff consented to or refused the voluntary test.

4 5 **F. PAS Refusal and Immediate Arrest**

6
7 23. Plaintiff declined the PAS test.

8
9 24. At 01:11:15 through 01:11:33 -- eighteen seconds after the refusal -- Officer
10 Meza-Gonzalez placed Plaintiff under arrest. No new observation or piece of evidence intervened
11 between the refusal and the arrest. The temporal sequence is captured on the recording.

12 13 **G. The DS-367 and Arrest Report:**

14 **Four Material Contradictions with the Dashcam**

15
16 25. Following the arrest, Defendant Meza-Gonzalez prepared, executed under penalty of
17 perjury, and submitted to DMV, to the reviewing magistrate, and to the Alameda County District
18 Attorney: (a) a DS-367 Age 21 and Older Officer's Statement; and (b) a CHP Arrest-Investigation
19 Report (Case No. RJ68845).

20
21 26. Each document contains representations that are materially contradicted by the
22 dashcam recording:

23
24 (a) Odor. The DS-367 and arrest report state Meza-Gonzalez detected a "strong distinct
25 odor of an alcoholic beverage" from Plaintiff. In over two hours of continuous dashcam
26 audio, neither officer verbalizes any observation of an alcohol odor at any point. Officers
27 routinely narrate significant observations on dashcam -- Melano narrates his cup
28 hypothesis (00:56:09), his urine identification (00:58:49-00:59:07), and vehicle details

1 (00:55:53) -- but neither officer narrates detecting an alcohol odor.

2
3 (b) Speech. The DS-367 characterizes Plaintiff's speech as "slurred." The recording
4 captures Plaintiff in extended coherent conversation, including spelling his surname
5 letter-by-letter and discussing mechanical details of the rental vehicle.

6
7 (c) Orientation. The arrest report states Plaintiff "seemed very confused and disoriented."
8 The recording captures Plaintiff correctly identifying his location as Livermore and
9 reading distant highway signage.

10
11 (d) Beverage. The DS-367 contains a checked box for "Beverage Present: Yes." The only
12 liquid the officers found and discussed on the recording was identified by Officer Melano
13 as urine, not a beverage.

14
15 27. The arrest report also omits material facts: that the suspected alcohol in the cup was
16 identified on the recording as urine; that Officer Melano declined to administer certain FSTs due
17 to ground conditions; that Officer Meza-Gonzalez expressly advised Plaintiff the PAS was
18 voluntary; and that no officer had observed Plaintiff driving or in volitional control of the vehicle.

19
20 28. Of the four contradictions, the "Beverage Present" entry is the most objectively
21 verifiable: the officers' own contemporaneous words on their own recording identify the only
22 liquid as urine, and the DS-367 checkbox characterizes it as a beverage. The odor, speech, and
23 orientation entries are experiential observations that were not verbalized on the recording;
24 Plaintiff alleges they are materially contradicted by the objective record, and their truth or falsity
25 is a question the recording can help resolve.

H. The Blood-Draw Warrant and Forced Extraction

29. Based on the DS-367 and arrest report, a magistrate authorized a warrant for the involuntary extraction of Plaintiff's blood. Plaintiff was transported to the CHP Dublin Area office, where a blood sample was forcibly drawn pursuant to that warrant. A compelled blood draw is a significant bodily intrusion within the meaning of the Fourth Amendment. *Missouri v. McNeely*, 569 U.S. 141, 148 (2013).

30. If the four contradicted representations identified in paragraph 26 are set aside, and if the omitted facts identified in paragraph 27 are restored, the warrant application would have reflected: a commercial driver parked and asleep on a highway shoulder; a cup identified by the investigating officer as urine; coherent, oriented conversation; no verbalized alcohol odor; and refusal of a test the officer had just described as voluntary. Whether those facts, standing alone, would have supported probable cause for a blood-draw warrant is a question that should be resolved on a developed record, not on the pleadings.

I. Booking and Extended Detention

31. Following the blood extraction, Plaintiff was transported to and booked at Santa Rita Jail in Dublin, California. A parole hold was placed based on the arrest report, extending Plaintiff's custodial confinement beyond the initial arrest.

J. CHP's Subsequent Reclassification:

The Penal Code Section 851.6 Detention Certificate

32. On November 5, 2024, the Dublin CHP issued a Detention Certificate under California Penal Code section 851.6, referencing CHP Case No. RJ68845. The Certificate states that Plaintiff's taking into custody "was a detention only, not an arrest" and that he was released

1 under Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint."
2 By operation of Penal Code sections 849(c) and 849.5, the encounter is thereafter not deemed an
3 arrest but a detention only.
4

5 33. The Detention Certificate is a subsequent official reclassification by the arresting
6 agency itself. It does not, standing alone, establish that the arrest violated the Fourth Amendment
7 at the moment it occurred. It does, however, constitute contemporaneous evidence from the
8 agency best positioned to evaluate the encounter -- evidence consistent with and corroborative of
9 Plaintiff's allegation that the arrest lacked probable cause.
10

11 **K. The District Attorney's Declination**

12

13 34. CHP referred charges to the Alameda County District Attorney under Vehicle Code
14 sections 23152(a), 23152(b), and 23578. The District Attorney declined to file any accusatory
15 pleading. No criminal case was initiated.
16

17 **L. Alias Note, Related Actions, and Prior Proceedings**

18

19 35. Plaintiff has appeared in prior court and administrative proceedings arising from this
20 incident under the name variant "Brendan Ngehsi Newanforbi." That is the same individual as
21 Plaintiff in this action. This Complaint uses "Brendan Ngwa Nforbi" throughout except where
22 quoting from a prior record. In a related action in this District, N.D. Cal. Case No.
23 4:26-cv-05953-ASK, a coordinate Article III judge screened a complaint resting on a substantially
24 overlapping factual record and found it sufficient to proceed under 28 U.S.C. section 1915(e). A
25 prior action arising from the same November 1, 2024 incident, filed in the Eastern District of
26 California, has been voluntarily dismissed without prejudice. This action is not duplicative of any
27 pending proceeding.
28

M. Damages

36. As a direct and proximate result of Defendants' conduct, Plaintiff has suffered:

(a) Loss of liberty from custodial confinement at the roadside, at the CHP Dublin Area office, and at Santa Rita Jail, including extended confinement under a parole hold predicated on the arrest report;

(b) A compelled blood extraction at the CHP Dublin Area office;

(c) Loss of employment and earning capacity as a Class A commercial driver. At the time of the November 1, 2024 incident, Plaintiff had just commenced a dedicated route assignment with Lily Transportation (Toyota Dedicated, San Ramon, California) through Centerline Drivers, a staffing company, at a regular rate of \$33.35 per hour and a premium/overtime rate of \$50.03 per hour, as reflected in the contemporaneous Centerline wage notice dated October 31, 2024. Using a conservative schedule of forty regular hours and twenty overtime hours per week -- consistent with dedicated regional truck driving work -- Plaintiff's lost earnings from November 1, 2024 through the filing of this Complaint (approximately 92 weeks) exceed \$214,000. This figure does not include lost employment benefits, future impairment of earning capacity, or other consequential economic losses;

(d) A one-year administrative-per-se suspension of Plaintiff's Class A Commercial Driver's License (Feb. 20, 2025 through Feb. 19, 2026), with an accompanying one-year commercial disqualification, together with a three-year SR-22 financial-responsibility requirement (annual premiums of \$281.28) running through approximately February 2028 and a \$125.00 CDL reissue fee;

1 (e) Vehicle towing and impound fees; and

2
3 (f) Emotional distress, anxiety, humiliation, sleep disturbance, and reputational injury
4 from having his professional reputation damaged by sworn statements that are materially
5 contradicted by the officers' own contemporaneous recording.
6

7 37. Without the contradicted representations in the DS-367, DMV would have lacked the
8 factual basis for the administrative-per-se suspension that stripped Plaintiff of his commercial
9 driving privileges. The wage loss is a direct and foreseeable result of the DS-367, which was the
10 triggering document for the APS proceeding. The total economic damages, including lost wages,
11 benefits, and out-of-pocket expenses, exceed \$250,000, excluding emotional distress and punitive
12 damages to be proven at trial.
13

14 FIRST CAUSE OF ACTION

15

16 Fourth Amendment -- Judicial Deception and Unlawful

17 Bodily Intrusion Under a Warrant Obtained Through

18 Materially False or Misleading Statements

19 (42 U.S.C. § 1983 -- Against Defendant Meza-Gonzalez and DOES 1-10)
20

21 38. Plaintiff re-alleges paragraphs 1 through 37.
22

23 39. An officer violates the Fourth Amendment by submitting a warrant application
24 containing statements that are deliberately or recklessly false, or that omit material facts, if the
25 application -- stripped of the false statements and supplemented with the omitted facts -- would
26 not support probable cause. *Franks v. Delaware*, 438 U.S. 154, 155-56 (1978); *Chism v.*
27 *Washington State*, 661 F.3d 380, 386 (9th Cir. 2011).
28

40. Defendant Meza-Gonzalez executed under penalty of perjury the DS-367 and arrest report containing the four contradicted representations identified in paragraph 26 and the material omissions identified in paragraph 27. Those documents formed the basis of the warrant authorizing the involuntary extraction of Plaintiff's blood. When the contradicted representations are set aside and the omitted facts are restored, the remaining application does not plausibly support probable cause to believe Plaintiff was driving under the influence.

41. Defendant Meza-Gonzalez acted with at least reckless disregard for the truth. An officer who executes a sworn statement while a contemporaneous recording of the same encounter -- stored on his own patrol vehicle -- contains information materially inconsistent with that sworn statement acts with reckless disregard, at minimum. The right to be free from a warrant obtained through materially false or misleading statements was clearly established before November 1, 2024. *Franks*, 438 U.S. at 155-56; *Chism*, 661 F.3d at 386; *Galbraith v. County of Santa Clara*, 307 F.3d 1119, 1126 (9th Cir. 2002).

42. As a direct and proximate result, Plaintiff suffered a compelled blood extraction without valid probable cause, and the further damages alleged in paragraphs 36-37.

SECOND CAUSE OF ACTION

Fourteenth Amendment -- Deliberate Fabrication of Evidence
(42 U.S.C. § 1983 -- Against Defendant Meza-Gonzalez and DOES 1-10)

43. Plaintiff re-alleges paragraphs 1 through 37.

44. The Fourteenth Amendment prohibits state actors from deliberately fabricating evidence and using it to bring about deprivations of liberty or property. *Devereaux v. Abbey*, 263 F.3d 1070, 1076 (9th Cir. 2001) (en banc). Qualified immunity is not available to officers who

1 deliberately fabricate evidence. *Costanich v. Dep't of Social & Health Servs.*, 627 F.3d 1101,
2 1115-16 (9th Cir. 2010).

3
4 45. Defendant Meza-Gonzalez executed sworn statements containing the four materially
5 contradicted representations identified in paragraph 26. Those statements were used to obtain the
6 blood-draw warrant, to sustain custodial confinement (including under a parole hold), to initiate
7 and sustain the DMV administrative-per-se suspension of Plaintiff's Class A CDL, and to refer
8 charges to the District Attorney.

9
10 46. Defendant Meza-Gonzalez knew, or in the exercise of reasonable care should have
11 known, that the representations were materially inconsistent with the contemporaneous recording
12 stored on his own agency's equipment. An officer who generates sworn statements containing
13 factual assertions that his own recording does not corroborate -- and that the recording, on at least
14 one point ("Beverage Present: Yes" versus contemporaneous identification of the liquid as urine),
15 directly contradicts -- acts deliberately or with reckless disregard sufficient to state a fabrication
16 claim.

17
18 47. As a direct and proximate result, Plaintiff has suffered the damages alleged in
19 paragraphs 36-37.

20 21 **THIRD CAUSE OF ACTION**

22 23 **Fourth Amendment -- Unlawful Arrest and Detention** 24 **(42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)**

25
26 48. Plaintiff re-alleges paragraphs 1 through 37.

27
28 49. The Fourth Amendment requires probable cause for a warrantless arrest. Probable

1 cause exists when the facts and circumstances known to the officer at the time are sufficient for a
2 prudent person to believe that the suspect has committed a crime. *Devenpeck v. Alford*, 543 U.S.
3 146, 152 (2004).

4
5 50. At the moment of arrest (01:11:15-01:11:33), the facts known to the officers, as
6 reflected on the recording, included: Plaintiff was parked and asleep when contacted; the only
7 suspected "beverage" had been identified as urine; Plaintiff had spoken coherently and identified
8 his location; no officer had verbalized an alcohol odor; Officer Melano had declined to administer
9 certain FSTs due to ground conditions; and Plaintiff had exercised his statutory right to decline a
10 test the officers had described as voluntary. No new observation or evidence intervened between
11 the PAS refusal and the arrest.

12
13 51. CHP's subsequent issuance of the Penal Code section 851.6 Detention Certificate --
14 reclassifying the event as a detention for "insufficient grounds" -- and the Alameda County
15 District Attorney's declination to file charges are consistent with and corroborative of Plaintiff's
16 allegation that the arrest lacked probable cause.

17
18 52. The right to be free from arrest without probable cause was clearly established well
19 before November 1, 2024. *Beck v. Ohio*, 379 U.S. 89 (1964); *Devenpeck*, 543 U.S. at 152.

20
21 53. As a direct and proximate result, Plaintiff was subjected to custodial confinement and
22 has suffered the damages alleged in paragraphs 36-37.

23
24 **FOURTH CAUSE OF ACTION**

Fourth Amendment -- Unlawful Warrantless Entry
(42 U.S.C. § 1983 -- Against Defendant Melano and DOES 1-10)

54. Plaintiff re-alleges paragraphs 1 through 37.

55. A warrantless entry into a constitutionally protected area is presumptively unreasonable absent consent or a recognized exception. *Payton v. New York*, 445 U.S. 573, 585-90 (1980); *Collins v. Virginia*, 584 U.S. 586, 592-93 (2018). The interior of a passenger vehicle is a constitutionally protected area.

56. At 00:56:43, Defendant Melano opened the front passenger-side door of Plaintiff's vehicle while Plaintiff was asleep. No consent was given. No warrant existed. No exigent circumstance was present. The officers' own words on the recording preceding the entry ("It's a rental," "It wasn't here earlier," "I think it's booze") reflect investigative interest, not a response to an observable medical emergency. Even if a welfare rationale had been present, the community caretaking exception does not authorize warrantless entry absent an imminent threat to safety. *Caniglia v. Strom*, 593 U.S. 194, 197-99 (2021).

57. The right to be free from warrantless entry into a vehicle absent consent, exigency, or an applicable exception was clearly established before November 1, 2024. *Payton*, 445 U.S. at 585-90; *Collins*, 584 U.S. at 592-93; *Caniglia*, 593 U.S. at 197-99.

58. As a direct and proximate result, Plaintiff has suffered the damages alleged in paragraphs 36-37.

1 **FIFTH CAUSE OF ACTION**

2

3 **Fourth Amendment -- Unlawful Search**

4 **(42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)**

5

6 59. Plaintiff re-alleges paragraphs 1 through 37.

7

8 60. Following the warrantless entry, Defendants searched Plaintiff's vehicle -- including

9 seizing and examining the cup from the center console area and searching additional portions of

10 the cabin. No consent was given. No warrant existed. No exigent circumstance was present.

11

12 61. To the extent the search was justified by any suspicion arising from the visible cup,

13 that suspicion dissipated when Officer Melano identified the cup's contents as urine

14 (00:58:49-00:59:07). Continuing a search after the articulable basis for it has dissipated is

15 unreasonable. *Rodriguez v. United States*, 575 U.S. 348, 355 (2015).

16

17 62. The right to be free from a warrantless search absent probable cause, consent, or an

18 applicable exception was clearly established before November 1, 2024. *Arizona v. Gant*, 556 U.S.

19 332, 343-44 (2009); *Rodriguez*, 575 U.S. at 355.

20

21 63. As a direct and proximate result, Plaintiff has suffered the damages alleged in

22 paragraphs 36-37.

23

24 **SIXTH CAUSE OF ACTION**

25

26

27

28

**First Amendment -- Retaliation for Exercise of
Statutory Right to Refuse a Voluntary
Preliminary Alcohol Screening Test
(42 U.S.C. § 1983 -- Against Both Defendants and DOES 1-10)**

64. Plaintiff re-alleges paragraphs 1 through 37.

65. To state a First Amendment retaliation claim, a plaintiff must allege (i) constitutionally protected activity; (ii) an adverse action; and (iii) a causal connection. *Nieves v. Bartlett*, 587 U.S. 391, 398-99 (2019); *Ballentine v. Tucker*, 28 F.4th 54, 62 (9th Cir. 2022).

66. Plaintiff engaged in protected activity. Under California Vehicle Code section 23612(i), a PAS test is a voluntary investigative tool for drivers not on DUI probation. Refusal carries no statutory consequence. Officer Meza-Gonzalez confirmed its voluntary nature at timestamp 01:10:54: "You're not required to do this." The exercise of a statutory right to refuse a voluntary investigative procedure is constitutionally protected conduct. *Ballentine*, 28 F.4th at 62; *Camara v. Municipal Court*, 387 U.S. 523, 528-33 (1967).

67. Defendants took an adverse action. At timestamp 01:11:15, Plaintiff declined the PAS test. Eighteen seconds later, at timestamp 01:11:33, Officer Meza-Gonzalez placed Plaintiff under arrest. No new evidence of impairment was observed or articulated between the refusal and the arrest.

68. The arrest was causally connected to the refusal. The temporal proximity -- eighteen seconds -- supports an inference of causation. That inference is reinforced by Officer Meza-Gonzalez's own statement at timestamp 01:11:03, captured on the dashcam recording: "If you choose to not consent to it, then it'll be up to my discretion whether I put you under arrest for DUI or not." That statement, made moments before the refusal and arrest, expressly conditioned

1 the arrest decision on whether Plaintiff consented to or refused the voluntary test.

2
3 69. Nieves does not bar this claim. Under Nieves, a retaliatory-arrest claim survives even
4 if probable cause existed if the plaintiff shows that similarly situated individuals not engaged in
5 the same protected conduct were not arrested. 587 U.S. at 407. Here, the PAS test is statutorily
6 voluntary and refusal carries no penalty; non-refusing drivers are not arrested for declining it. In
7 the alternative, as alleged in the Third Cause of Action, no probable cause existed for the arrest.
8 The right to be free from retaliatory arrest for exercising a statutory right was clearly established
9 before November 1, 2024. Ballentine, 28 F.4th at 62; Nieves, 587 U.S. at 398-99.

10
11 70. As a direct and proximate result, Plaintiff has suffered the damages alleged in
12 paragraphs 36-37.

13
14 **PRAYER FOR RELIEF**

15
16 WHEREFORE, Plaintiff BRENDAN NGWA NFORBI respectfully prays for judgment
17 against Defendants SANTIAGO MEZA-GONZALEZ and JOSE MELANO, in their individual
18 capacities, as follows:

19
20 A. Compensatory damages against each Defendant in an amount according to proof at
21 trial, including but not limited to: loss of liberty and physical and emotional suffering
22 from the unlawful detention, arrest, and compelled blood extraction; lost wages and lost
23 earning capacity exceeding \$214,000 from November 1, 2024 through the present,
24 calculated from Plaintiff's contemporaneous rate of \$33.35 regular and \$50.03 premium;
25 continuing impairment of future earning capacity as a Class A commercial driver;
26 out-of-pocket expenses including SR-22 premiums, CDL reissue fee, and vehicle towing
27 and impound costs; and emotional distress, humiliation, and reputational injury;
28

1 B. Punitive damages against each Defendant in an amount sufficient to punish and deter;

2
3 C. Reasonable attorney's fees and costs pursuant to 42 U.S.C. section 1988;

4
5 D. Pre- and post-judgment interest; and

6
7 E. Such other and further relief as this Court deems just and proper.

8
9 **DEMAND FOR JURY TRIAL**

10
11 Pursuant to Rule 38 of the Federal Rules of Civil Procedure and the Seventh Amendment
12 to the United States Constitution, Plaintiff demands a trial by jury on all issues so triable.

13
14
15 Dated: August 7, 2026

16
17 Respectfully submitted,

18
19
20 _____
21 BRENDAN NGWA NFORBI

22 Plaintiff, In Pro Per
23
24
25
26
27
28